

Tentative Rulings and Resolution Review Hearings
November 4, 2024
Department 63 (formerly Department 8)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

ALL AMERICAN EXPRESS, INC. VS. JACKSON, ET AL.

Case Number: 23CV-0202527

Tentative Ruling on Plaintiff's Discovery Motions: Plaintiff All American Express, Inc. has filed: 1) a Motion to Compel Further Interrogatory Responses against Defendant Danyelle Jackson; 2) a Motion to Compel Request for Production Responses against Defendant Danyelle Jackson; 3) a Motion to Compel Further Interrogatory Responses against Defendant Market Express; and 4) a Motion to Compel Request for Production Responses against Defendant Market Express. Despite the titles of the respective motions, each seeks to compel further responses to discovery. A motion to compel further responses requires the parties to meet and confer in good faith prior to the filing of the motion. CCP §§ 2030.300(b)(1) & 2031.310(b)(2). The evidence before the Court is that there was a single attempt to meet and confer on June 19, 2024. The Court finds the evidence insufficient that the parties met and conferred in good faith. Additionally, it appears that portions of the motion may have been made moot by Defendants providing further responses. The Court cannot determine which discovery remains at issue. The Court also notes that only 3 of the 4 motions were opposed and that all motions appear to have been filed untimely. Finally, the Court notes that the discovery appears unverified which may also justify an order compelling responses. The above issues appear to be resolvable through a further good faith meet and confer process. This matter is continued to **Monday, December 16, 2024, at 8:30 a.m. in Department 63.** The parties are ordered to meet and confer in good faith on the discovery issues. The parties are ordered to submit a joint statement regarding the outstanding discovery issues. The joint statement shall be filed no later than December 9, 2024. **No appearance is necessary on today's calendar.**

ASPIRE GENERAL INSURANCE COMPANY VS. ALLISON

Case Number: 22CVG-00899

Tentative Ruling on Order to Show Cause R: Dismissal: An Order to Show Cause Re: Dismissal issued on August 27, 2024 for failure to timely serve and failure to timely prosecute. This litigation was filed on November 2, 2022. CRC 3.740(d) requires service in collection cases within 180 days of the filing of the complaint. No proof of service has ever been filed. The Court finds that Plaintiff is in violation of CRC 3.740(d). In Plaintiff's Declaration filed August 19, 2024, counsel declared that Defendant was served on September 18, 2023. A Proof of Service of Summons has not been filed in this case and the Court has raised this issue with Plaintiff several times, including imposing monetary sanctions for the failure to serve. Plaintiff did not file a written response to the Order to Show Cause Re: Dismissal and no sufficient excuse has been presented for failure to timely serve and prosecute. **An appearance is necessary on today's calendar. Absent good cause being presented, the**